

Chandramohan vs Madhumitha on 12 August, 2022

Author: R.N.Manjula

Bench: R.N.Manjula

C.R.P

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 12.08.2022

CORAM :

THE HONOURABLE MS. JUSTICE R.N.MANJULA

C.R.P(PD).No.2295 of 2022

and

C.M.P.No.11764 of 2022

1.Chandramohan
2.Vanitha

Vs

1.Madhumitha
2.Anish
3.The Marriage Registrar,
Office of Sub Registrar,
Jawaharlal Nehru Street,
Karaikal.

Prayer:- Petition is filed under Article 227 of the Constitution of India to strike out the entire proceedings in H.M.O.P.No.32 of 2022 pending on of the Family Court, Karaikal as against the petitioners herein.

For Petitioners : Ms.Geeta Ramaseshan
For Respondents : Mr.S.P.Vijayaraghavan
for R1

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<https://www.mhc.tn.gov.in/judis>

C.R.P

ORDER

This Civil Revision Petition has been preferred to strike out the entire proceedings in H.M.O.P.No.32 of 2022 pending on the file of the Family Court, Karaikal as against the petitioners herein.

2. Heard the learned counsel for the petitioners and the learned counsel for the first respondent and also perused the materials available on record.

3. The first respondent is the wife and the second respondent is the husband. The revision petitioners 1 and 2 are the parents of the second respondent.

4. The revision petitioners are the respondents 2 and 3 in the original petition in H.M.O.P.No.32 of 2022 filed by the first respondent/petitioner for the relief of passing the decree for nullity of marriage between herself and the second respondent and for recovery of a sum of Rs.25,00,000/- from the revision petitioners and the second respondent towards compensation and damages and also issue direction to the third respondent herein to carry out necessary entries with regard to annulment of marriage in the marriage Register maintained by the <https://www.mhc.tn.gov.in/judis> third respondent herein namely Office of the Sub Registrar, Office at Jawaharlal Nehru Street, Karaikal Town and Munsifi.

5. Ms.Geeta Ramaseshan, learned counsel for the revision petitioners submitted that the petition filed for decree for annulment of marriage is with regard to the marriage that was held between the first respondent and the second respondent and in which, the parents of the second respondent have been added as parties; since the relief sought for is only out of the alleged personal cause of action, no other person other than the second respondent/husband can be a party to the original petition filed by the first respondent/wife; since the marriage was solemnised in accordance with the Hindu Marriage Act, the parties are bound by the provisions of the Hindu Marriage Act by invoking Section 12 of the Hindu Marriage Act, 1955 [for the sake of convenience herein after referred as “the Act”] ; the first respondent/wife cannot file this petition against the parents of the spouse also and hence, the petition itself is not maintainable.

6. Mr.S.P.Vijayaraghavan, learned counsel for the first respondent submitted that the marriage is solemnised not simply between the first respondent and the second respondent, but it is only at the instance of his parents and hence, <https://www.mhc.tn.gov.in/judis> whatever damages caused to the first respondent due to the marriage, the parents of the second respondent are also liable. His further contention is that the proceedings before the Family Court have to be dealt by following the Civil Procedure Code and hence, the wife is entitled to implead parties to the proceedings, according to her choice and relevant to her claims.

7. No doubt, the petition has been filed under Section 12 of the Act by alleging that the marriage between the first and second respondent was not consummated. The very contention of the first respondent is that the marriage was not consummated and hence, the first respondent is entitled to declare the same as a nullity.

8. Section 12 of the Act is applicable to voidable marriages. The party to the marriage can have a right to exercise his/her right to declare the marriage as a nullity on the basis of the grounds enumerated under Section 12 of the Act. For the sake convenience, Section 12 of the Hindu Marriage Act, 1955 is extracted as under:

12. Voidable marriages.—(1) Any marriage solemnised, whether before or after the commencement of this Act, shall <https://www.mhc.tn.gov.in/judis> be voidable and may be annulled by a decree of nullity on any of the following grounds, namely:— [(a) that the marriage has not been consummated owing to the impotence of the respondent; or]

(b) that the marriage is in contravention of the condition specified in clause (ii) of section 5; or

(c) that the consent of the petitioner, or where the consent of the guardian in marriage of the petitioner 4 [was required under section 5 as it stood immediately before the commencement of the Child Marriage Restraint (Amendment) Act, 1978 (2 of 1978)], the consent of such guardian was obtained by force 5 [or by fraud as to the nature of the ceremony or as to any material fact or circumstances concerning the respondent]; or

(d) that the respondent was at the time of the marriage pregnant by some person other than the petitioner.

(2) Notwithstanding anything contained in sub-section (1), no petition for annulling a marriage—

(a) on the ground specified in clause (c) of sub-section (1) shall be entertained if—

(i) the petition is presented more than one year after the force had ceased to operate or, as the case may be, the fraud had been discovered; or

(ii) the petitioner has, with his or her full consent, lived with the other party to the marriage as husband or wife after the force had ceased to operate or, as the case may be, the fraud had been discovered;

(b) on the ground specified in clause (d) of sub-section (1) <https://www.mhc.tn.gov.in/judis> shall be entertained unless the court is satisfied— (i) that the petitioner was at the time of the marriage ignorant of the facts alleged;

(ii) that proceedings have been instituted in the case of a marriage solemnised before the commencement of this Act within one year of such commencement and in the case of marriages solemnised after such commencement within one year from the date of the marriage; and

(iii) that marital intercourse with the consent of the petitioner has not taken place since the discovery by the petitioner of the existence of [the said ground].

9. The marriage under Hindu Law or any other type of marriage for that matter, can only be held between two individuals. The grounds listed under Section 12 of the Act for the purpose of getting a decree of nullity, would only show all that the parties have only a personal cause of action. That means, the cause of action is between the two parties to the marriage. It is quite possible that either party to the marriage would get affected due to the act of the family members of the either spouse due to their active participation or persuasion in arranging the marriage and thereby, one party would have sustained monetary loss or suffered mental agony. However, for claiming compensation or any other relief in respect of such action, a person cannot seek proceedings under Section 12 of the Act. The matrimonial reliefs are predominantly only for personal relief and <https://www.mhc.tn.gov.in/judis> cannot have the status of a Civil Suit, for which one can have various cause of actions.

10. The Family Court has also got jurisdiction to try the suits under Section 7 of The Family Courts Act, 1984. Just because the Family Courts are to adopt the procedures contemplated under the Code of Civil Procedure, it cannot be claimed that all cause of actions the spouse might get should be made in this Original Petition by impleading all other family members. The Original Petitions are to be filed for seeking certain specific reliefs. The Family Court has got vast jurisdiction to try the suits mentioned under Section 9 of the Family Courts Act, 1984, apart from the Original Petitions filed seeking for specific matrimonial reliefs under the Act.

11. For better appreciation Section 7 of The Family Courts Act, 1984 is extracted hereunder:

“ 7. Jurisdiction. - (1) Subject to the other provisions of this Act, a Family Court shall have and exercise all the jurisdiction exercisable by any district Court or any subordinate Civil Court under any law for the time being in force in respect of suits and proceedings of the nature referred to in the Explanation; and <https://www.mhc.tn.gov.in/judis> b. be deemed, for the purposes of exercising such jurisdiction under such law, to be a district Court or, as the case may be. such subordinate Civil Court for the area to which the jurisdiction of the Family Court extends. Explanation -The suits and proceedings referred to in this subsection are suits and proceedings of the following nature, namely:

a. a suit or proceeding between the parties to a marriage for decree of a nullity marriage (declaring the marriage to be null and void or, as the case may be, annulling the marriage) or restitution of conjugal rights or judicial separation or dissolution of marriage; b. a suit or proceeding for a declaration as to the validity of a marriage or as to the matrimonial status of any person; c. a suit or proceeding between the parties to a marriage with respect to the property of the parties or of either of them;

d. a suit or proceeding for an order or injunction in circumstances arising out of a marital relationship; e. a suit or proceeding for a declaration as to the legitimacy of

any person;

f. a suit or proceeding for maintenance; g. a suit or proceeding in relation to the guardianship of the person or the custody of, or access to, any minor. (2) Subject to the other provisions of this Act a Family Court shall also have and exercise;

a. the jurisdiction exercisable by a Magistrate of the first class under Chapter IX (relating to order for maintenance of wife, children and parents) of the Code of Criminal Procedure, 1973 (2 of 1974); and b. such other jurisdiction as may be conferred on it by any other enactment

12. The cause of action which the first respondent might get against the second respondent and the cause of action which the first respondent might get <https://www.mhc.tn.gov.in/judis> against the other respondents along with the second respondent, cannot be confused in a petition presented under Section 12 of the Hindu Marriage Act, by clubbing the reliefs.

13. However, a suit or proceedings cannot be declared as void, just because it includes some improper parties. Though the suit or proceedings can be bad for non-joinder or mis-joinder of parties, the proceedings cannot be declared as null and void on that score alone, without considering the merits of the entire Original Petition. Hence, I feel the petition cannot be struck off in entirety. But, only the unnecessary parties namely the revision petitioners 1 and 2 and the third respondent/Marriage Registrar herein should be struck out. However, this will not take away the right of the first respondent to seek appropriate relief like damages etc from the husband or his family members, by filing appropriate proceedings.

14. In view of the above discussion, this Civil Revision Petition is partly allowed and the revision petitioners 1 and 2 and the third respondent, who are the respondents 2 to 4 in H.M.O.P.No.32 of 2022 before the Family Judge, Karaikal are struck out. There shall be no order as to costs. Consequently, <https://www.mhc.tn.gov.in/judis> connected Miscellaneous Petition is closed.

12.08.2022

Index : Yes/No
Speaking Order/Non-Speaking Order
ms

To

1.The Judge,
Family Court,
Karaikal.

2.The Marriage Registrar,
Office of Sub Registrar,
Jawaharlal Nehru Street,
Karaikal.

3.The Section Officer,
V.R.Section,
High Court, Madras.

<https://www.mhc.tn.gov.in/judis>

R.N.MANJULA, J.

ms

and

12.08.2022
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